

PROPOSED
SENATE AMENDMENTS TO S.B. 1082
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 36, chapter 6, Arizona Revised Statutes, is
3 amended by adding article 16, to read:

4 ARTICLE 16. PETTING ZOOS AND ANIMAL ~~[ENCOUNTER]~~ [CONTACT] EXHIBITS

5 36-799. Petting zoos; animal contact exhibits; handwashing

6 required; enclosures; signage; supervision;

7 inspection; civil penalties; exceptions; definition

8 A. EXCEPT AS PROVIDED IN SUBSECTION F OF THIS SECTION, THIS SECTION
9 APPLIES TO ALL PETTING ZOOS, ANIMAL ~~[ENCOUNTER]~~ [CONTACT] EXHIBITS AND
10 SIMILAR OPERATIONS, WHETHER PERMANENT OR TEMPORARY, AT WHICH MEMBERS OF
11 THE PUBLIC ARE ALLOWED TO TOUCH OR FEED LIVE ANIMALS.

12 B. OPERATORS OF PETTING ZOOS, ANIMAL ~~[ENCOUNTER]~~ [CONTACT] EXHIBITS
13 AND SIMILAR OPERATIONS SHALL ENSURE THAT ALL PERSONS WASH THEIR HANDS WITH
14 SOAP AND WATER ~~[OR USE A HAND SANITIZER]~~ IMMEDIATELY ON LEAVING THE AREA
15 WHERE THE ANIMALS ARE ACCESSIBLE TO THE PUBLIC. [IF HANDWASHING WITH SOAP
16 AND WATER IS NOT FEASIBLE, OPERATORS OF THE PETTING ZOOS, ANIMAL CONTACT
17 EXHIBITS AND SIMILAR OPERATIONS SHALL PROVIDE ALCOHOL-BASED HAND SANITIZER
18 WITH AT LEAST SIXTY PERCENT ALCOHOL.]

19 C. EACH PETTING ZOO, ANIMAL ~~[ENCOUNTER]~~ [CONTACT] EXHIBIT AND
20 SIMILAR OPERATION SHALL PROMINENTLY DISPLAY AT ALL ENTRANCES AND EXITS A
21 SIGN CONTAINING THE FOLLOWING STATEMENT IN CLEAR, LEGIBLE LETTERING THAT
22 ~~[ARE]~~ [IS] AT LEAST ONE INCH IN HEIGHT:

23 FOR THE SAFETY OF ALL PERSONS, ~~[PARTICIPANTS]~~ [YOU] MUST
24 WASH ~~[THEIR]~~ [YOUR] HANDS [WITH SOAP AND WATER] ON EXITING.
25 ~~[PERSONS MAY NOT EAT OR DRINK WITHIN]~~ [FOOD AND DRINK ARE NOT
26 ALLOWED IN] THE ANIMAL CONTACT AREA ~~[AND SHOULD NOT PLACE~~
27 ~~THEIR FINGERS OR ANY OTHER OBJECT IN THEIR MOUTHS].~~ [DO NOT
28 TOUCH YOUR FACE OR MOUTH WHILE IN THE ANIMAL CONTACT AREA AND
29 UNTIL AFTER YOU HAVE EXITED AND WASHED YOUR HANDS.]

1 D. EACH PETTING ZOO, ANIMAL ~~[ENCOUNTER]~~ [CONTACT] EXHIBIT AND
2 SIMILAR OPERATION SHALL MAINTAIN THE ANIMALS IN AN ENCLOSED OR OTHERWISE
3 RESTRICTED AREA SO THAT PERSONS WHO HAVE NOT ENTERED THROUGH A DESIGNATED
4 ENTRANCE CANNOT PET, FEED OR OTHERWISE PHYSICALLY CONTACT THE ANIMALS.

5 E. EACH PETTING ZOO, ANIMAL ~~[ENCOUNTER]~~ [CONTACT] EXHIBIT AND
6 SIMILAR OPERATION SHALL ENSURE THAT~~[-~~

7 ~~1-]~~ AT LEAST ONE RESPONSIBLE ADULT [SUPERVISOR] IS PRESENT IN THE
8 ANIMAL CONTACT AREA AT ALL TIMES [DURING] [TO SUPERVISE THE PETTING ZOO,
9 EXHIBIT OR] OPERATION.

10 ~~[2. EACH SUPERVISOR ACTIVELY MONITORS COMPLIANCE WITH THE~~
11 ~~HANDWASHING REQUIREMENT OF SUBSECTION B OF THIS SECTION AND ENSURES THAT~~
12 ~~ALL EXITING PARTICIPANTS COMPLY IMMEDIATELY ON LEAVING THE AREA WHERE THE~~
13 ~~ANIMALS ARE ACCESSIBLE TO THE PUBLIC.]~~

14 F. THE HANDWASHING REQUIREMENT PRESCRIBED IN SUBSECTION B OF THIS
15 SECTION DOES NOT APPLY TO PETTING ZOOS, ANIMAL ~~[ENCOUNTER]~~ [CONTACT]
16 EXHIBITS AND SIMILAR OPERATIONS THAT ARE CONTRACTED FOR A SINGLE DAY AT A
17 PRIVATE RESIDENCE FOR A PRIVATE EVENT OR PARTY. THE OPERATOR SHALL POST
18 THE SIGN PRESCRIBED IN SUBSECTION C OF THIS SECTION AT A VISIBLE LOCATION
19 AT THE EVENT SITE, INFORM THOSE RUNNING THE EVENT THAT IT IS RECOMMENDED
20 THAT GUESTS WASH ~~[OR SANITIZE]~~ THEIR HANDS [WITH SOAP AND WATER] AND
21 PROVIDE A HANDWASHING [OR SANITIZING] STATION NEARBY. [IF HANDWASHING
22 WITH SOAP AND WATER IS NOT FEASIBLE, THE OPERATORS SHALL PROVIDE
23 ALCOHOL-BASED HAND SANITIZER WITH AT LEAST SIXTY PERCENT ALCOHOL.]

24 G. ~~[ON REQUEST,] THE DEPARTMENT OF HEALTH SERVICES [MAY ADOPT RULES~~
25 ~~TO IMPLEMENT AND ENFORCE THIS SECTION, INCLUDING INSPECTION AUTHORITY AND~~
26 ~~THE IMPOSITION OF A CIVIL PENALTY NOT TO EXCEED \$100 PER VIOLATION] [SHALL~~
27 PROVIDE TECHNICAL ASSISTANCE TO THE ARIZONA STATE FAIR TO ASSIST WITH
28 COMPLIANCE RELATED TO THIS ARTICLE. THE DEPARTMENT MAY INSPECT ANY
29 PETTING ZOO, ANIMAL CONTACT EXHIBIT OR SIMILAR OPERATION IN OPERATION
30 DURING THE ARIZONA STATE FAIR].

31 [H. ON REQUEST, EACH COUNTY HEALTH DEPARTMENT SHALL PROVIDE
32 TECHNICAL ASSISTANCE TO THE COUNTY'S RESPECTIVE COUNTY FAIR TO ASSIST WITH
33 COMPLIANCE RELATED TO THIS ARTICLE. EACH COUNTY HEALTH DEPARTMENT MAY
34 INSPECT ANY PETTING ZOO, ANIMAL CONTACT EXHIBIT OR SIMILAR OPERATION IN
35 OPERATION DURING THE COUNTY'S RESPECTIVE ANNUAL FAIR.

36 I. THIS ARTICLE DOES NOT REQUIRE A PETTING ZOO, ANIMAL CONTACT
37 EXHIBIT OR SIMILAR OPERATION TO REGISTER OR OBTAIN A LICENSE WITH THE
38 DEPARTMENT OF HEALTH SERVICES.

39 J. THIS SECTION DOES NOT APPLY TO ANY ANIMAL SHELTER, ANIMAL RESCUE
40 ORGANIZATION, COUNTY POUND OR OTHER LOCATION WHERE DOMESTIC ANIMALS ARE
41 ADOPTED OR SOLD. FOR THE PURPOSES OF THIS SUBSECTION, "DOMESTIC ANIMAL"
42 HAS THE SAME MEANING PRESCRIBED IN SECTION 13-2910.

43 K. ON A DETERMINATION BY THE DEPARTMENT OF HEALTH SERVICES THAT
44 THERE IS REASONABLE CAUSE TO BELIEVE A PETTING ZOO, ANIMAL CONTACT EXHIBIT
45 OR SIMILAR OPERATION IS NOT ADHERING TO THIS ARTICLE, THE DEPARTMENT OF
46 HEALTH SERVICES OR A COUNTY HEALTH DEPARTMENT MAY INITIATE AN

1 INVESTIGATION. VIOLATIONS OF THIS ARTICLE ARE SUBJECT TO A CIVIL PENALTY
2 OF NOT MORE THAN \$100 PER VIOLATION.

3 L. FOR THE PURPOSES OF THIS SECTION, "PETTING ZOO, ANIMAL CONTACT
4 EXHIBIT OR SIMILAR OPERATION":

5 1. MEANS ANY PERMANENT OR TEMPORARY OPERATION, DISPLAY OR EVENT,
6 INCLUDING A MOBILE OR FIXED-SITE EXHIBIT, AT WHICH MEMBERS OF THE PUBLIC
7 ARE ALLOWED TO TOUCH, FEED OR OTHERWISE HAVE DIRECT PHYSICAL CONTACT WITH
8 LIVE ANIMALS, WHETHER FOR EDUCATIONAL, RECREATIONAL, COMMERCIAL OR
9 PROMOTIONAL PURPOSES.

10 2. DOES NOT INCLUDE:

11 (a) ANIMAL DISPLAYS OR EXHIBITS IN WHICH THE PUBLIC IS CONTINUOUSLY
12 SEPARATED FROM ANIMALS BY A PHYSICAL BARRIER THAT PREVENTS TOUCHING.
13 FEEDING OR OTHER DIRECT CONTACT.

14 (b) COMPETITIVE LIVESTOCK SHOWS WHERE ANIMAL CONTACT IS LIMITED TO
15 OWNERS AND HANDLERS.]

16 Enroll and engross to conform

17 Amend title to conform

THOMAS "T.J." SHOPE

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02/16/2026

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C: MH

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